ARTICLE X

PUBLIC PROTECTION AND RESPONSIBLE MUNICIPAL DECISION-MAKING

Section 10.00. Legislative Findings and Intent.

The People of the City of Harwood find that certain developments, because of their scale, infrastructure requirements, resource demands, operational characteristics, or potential impacts, may substantially affect municipal infrastructure, public services, public safety, natural resources, community welfare, and the long-term fiscal interests of the City.

The People further find that discretionary municipal decisions concerning such developments should be based upon complete and objective information, independent professional evaluation, transparent governmental procedures, meaningful public participation, and written findings supported by substantial evidence.

The People further find that informed municipal decision-making promotes responsible economic development while protecting the public interest, preserving municipal resources, and ensuring that significant public decisions are made only after the Governing Body has received sufficient information to reasonably evaluate foreseeable impacts upon the City and its residents.

The People further find that developments of extraordinary scale may create demands upon municipal infrastructure, transportation systems, utilities, emergency services, public finances, and natural resources that extend beyond those ordinarily associated with municipal land-use decisions and therefore warrant enhanced procedural review before discretionary municipal approvals are granted.

The People further find that the long-term public costs and benefits of Qualified Developments should be fully understood before discretionary municipal approvals are granted so that governmental decisions appropriately consider foreseeable impacts upon taxpayers, public infrastructure, municipal services, natural resources, surrounding properties, and future residents.

Accordingly, the People adopt this Article to establish uniform procedures governing the City's review and consideration of Qualified Developments requiring discretionary municipal approval.

The provisions of this Article shall be interpreted to promote informed municipal decision-making, governmental transparency, fiscal responsibility, protection of public infrastructure, protection of natural resources, and the public health, safety, and welfare, consistent with the Home Rule authority granted to the City under the Constitution and laws of the State of North Dakota.

Section 10.01. Purpose.

The purpose of this Article is to establish uniform requirements governing discretionary municipal decisions concerning Qualified Developments.

This Article is intended to ensure that such decisions are based upon objective evidence, independent professional evaluation, transparent governmental procedures, meaningful public participation, and written findings supported by substantial evidence.

Nothing in this Article is intended to prohibit responsible economic development or to regulate matters reserved exclusively to the State of North Dakota or the United States. Rather, this Article governs the procedures by which the City exercises its own discretionary authority when considering Qualified Developments.

This Article shall be applied uniformly to all Qualified Developments without regard to the identity of the applicant, ownership structure, industry classification, or proposed business activity.

The requirements established by this Article constitute minimum procedural protections governing discretionary municipal decisions concerning Qualified Developments and shall be interpreted consistently with the City's Home Rule authority.

Section 10.02. Definitions and Applicability.

For purposes of this Article, the following definitions shall apply.

10.02(A) Qualified Development.

"**Qualified Development**" means a proposed Industrial Development meeting the applicability requirements and impact thresholds established in this Section and requiring one or more discretionary municipal approvals from the City.

A Qualified Development includes:

1. the construction of a new Industrial Development;
2. the expansion of an existing Industrial Development;
3. a Substantial Modification of an existing Industrial Development; or
4. any combination of related activities constituting a Common Development Plan.

10.02(B) Industrial Development.

"**Industrial Development**" means any development involving industrial, manufacturing, processing, assembly, warehousing, distribution, energy production, utility-scale infrastructure, resource-intensive operations, high-intensity digital infrastructure, data processing facilities, or similar commercial or industrial activities that, because of their scale, operational characteristics, infrastructure requirements, or resource demands, may materially affect:

- municipal infrastructure;
- public services;
- transportation systems;
- public safety;
- natural resources;

- environmental conditions;
- surrounding properties; or
- the general welfare of the community.

Whether a development constitutes an Industrial Development shall be determined according to its actual characteristics, anticipated operations, infrastructure requirements, and reasonably foreseeable impacts, and not solely by its name, business classification, ownership structure, zoning designation, or project description.

10.02(C) Governing Body.

"Governing Body" means the City Council or any successor municipal legislative body lawfully authorized to exercise the legislative powers of the City under this Charter and the laws of the State of North Dakota.

10.02(D) Applicability.

This Article applies whenever a Qualified Development requires discretionary approval, authorization, or action by the City of Harwood.

Discretionary municipal action includes, but is not limited to:

- annexation;
- rezoning;
- approval of a Planned Unit Development;
- conditional use approval;
- special use approval;
- variance approval where authorized by law;
- subdivision approval;
- site plan approval;
- development agreement approval;
- infrastructure agreement approval;
- utility service agreements;
- municipal financial participation;
- tax incentives authorized by municipal action;
- or any other discretionary governmental action necessary for the proposed development to proceed.

Nothing in this Article shall be construed to apply solely because a ministerial permit or administrative approval is required.

10.02(E) Major Impact Thresholds.

A proposed Industrial Development shall constitute a Qualified Development if it meets or exceeds **any one** of the following Major Impact Thresholds.

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(1) Electrical Demand.

A projected peak electrical demand of **100 megawatts (MW)** or greater, based upon reasonably foreseeable maximum operating conditions.

Electrical demand shall include associated facilities and infrastructure reasonably related to the Common Development Plan.

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(2) Land Area.

A total development area of **100 acres or greater** owned, leased, controlled, or otherwise associated with the Common Development Plan.

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(3) Water Demand.

A projected water demand of **50,000 gallons per day** or greater, or a projected demand exceeding **five percent (5%) of the City's available municipal water supply capacity**, whichever threshold is less.

Water demand shall be evaluated using reasonably foreseeable peak operational conditions, including seasonal and emergency operating conditions where applicable.

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(4) Electrical Generation Capacity.

Installed emergency, standby, backup, auxiliary, or other electrical generation capacity totaling **100 megawatts (MW)** or greater.

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(5) Major Air Emissions Authorization.

A development requiring a major source air quality permit, Title V operating permit, or equivalent state or federal air quality authorization.

10.02(F) Moderate Impact Thresholds.

A proposed Industrial Development shall also constitute a Qualified Development if it meets or exceeds **two or more** of the following Moderate Impact Thresholds.

1. Projected peak electrical demand of **50 megawatts (MW)** or greater.
2. Total development area of **50 acres** or greater.
3. Projected water demand of **25,000 gallons per day** or greater.
4. Installed electrical generation capacity of **50 megawatts (MW)** or greater.
5. Air emissions requiring a state or federal air quality permit because of operational emissions.
6. Any additional threshold established by ordinance that is consistent with the purpose and intent of this Article and applies uniformly to all Industrial Developments.

10.02(G) Common Development Plan.

"Common Development Plan" means two or more related phases, projects, parcels, facilities, structures, ownership entities, or operational components that are reasonably related by ownership, contractual relationship, shared infrastructure, common financing, coordinated planning, functional integration, or intended operational use.

For purposes of determining applicability under this Article, all components of a Common Development Plan shall be considered collectively.

A Qualified Development shall not be divided into separate applications, ownership entities, construction phases, parcels, or operational components for the purpose or effect of avoiding the applicability of this Article.

10.02(H) Substantial Modification.

"Substantial Modification" means any expansion, alteration, replacement, addition, redevelopment, operational change, or infrastructure improvement that materially increases or creates new reasonably foreseeable impacts associated with an existing Industrial Development.

A Substantial Modification includes, but is not limited to, increases in:

- electrical demand;
- electrical generation capacity;
- water demand;
- wastewater generation;
- transportation impacts;
- public infrastructure demands;
- emergency response requirements;
- air emissions;
- land disturbance;
- operational intensity; or
- other impacts materially affecting the public interest.

Applicability shall be determined based upon the cumulative impacts of the existing development together with the proposed modification.

10.02(I) Cumulative Impact Evaluation.

In determining whether a proposed Industrial Development constitutes a Qualified Development, the City shall evaluate the cumulative and reasonably foreseeable impacts of the proposed development together with:

1. existing phases of the development;
2. approved but unconstructed phases;
3. planned expansions identified by the applicant;

4. facilities constructed or proposed under a Common Development Plan; and
5. supporting infrastructure reasonably necessary for operation of the development.

A development shall not avoid applicability under this Article through phased construction, incremental expansion, separate ownership entities, or multiple related applications.

10.02(J) Impact-Based Applicability.

The applicability of this Article shall be determined according to the actual and reasonably foreseeable characteristics, operational requirements, and impacts of a proposed development.

The City shall not determine applicability solely upon:

- the title or name of the project;
- business classification;
- ownership structure;
- zoning designation;
- parcel configuration;
- application format;
- construction schedule;
- financing structure;
- corporate organization; or
- any other administrative designation.

The actual scale and anticipated impacts of the proposed development shall govern the determination of whether this Article applies.

10.02(K) Uniform Application.

This Article shall be administered and applied uniformly to all Qualified Developments meeting the requirements established herein.

Neither the identity of the applicant, ownership, industry classification, economic incentives, anticipated tax revenue, employment projections, nor any other economic consideration shall exempt a development from the procedural requirements established by this Article.

Nothing contained herein shall prohibit the City from imposing additional requirements otherwise authorized by law where reasonably necessary to address unique impacts of a particular development.

10.02(L) Supporting Infrastructure.

For purposes of determining applicability under this Article, all infrastructure reasonably necessary to construct, operate, maintain, or support a Qualified Development shall be considered part of the development.

Supporting infrastructure includes, but is not limited to:

- electrical substations;

- transmission facilities;
- backup or standby generation;
- cooling systems;
- water supply infrastructure;
- wastewater infrastructure;
- stormwater facilities;
- fuel storage and delivery systems;
- internal transportation infrastructure;
- utility corridors;
- parking and service areas; and
- other facilities necessary for the intended operation of the development.

Supporting infrastructure shall be evaluated together with the principal development when determining applicability and cumulative impacts.

10.02(M) Competent Professional Evidence.

Whenever this Article requires determination of projected impacts, anticipated demand, operational characteristics, or other technical matters, such determinations shall be supported by competent professional evidence reasonably accepted within the applicable engineering, scientific, planning, or technical discipline.

The City may rely upon information submitted by an applicant only after determining that such information is reasonably complete and, where required by this Article, has been independently evaluated by a qualified independent professional or other neutral third party when required by this Article.

10.02(N) Construction of Thresholds.

The impact thresholds established by this Article are legislative determinations adopted by the People of the City of Harwood to identify developments of extraordinary scale whose reasonably foreseeable impacts may exceed those ordinarily associated with municipal land-use decisions.

The thresholds are intended solely to identify developments requiring enhanced procedural review before discretionary municipal approvals are granted.

Nothing contained herein shall be construed to establish environmental standards, operational standards, or technical performance standards for any development.

10.02(O) Relationship to State and Federal Regulation.

The procedures established by this Article are intended solely to govern the City's exercise of discretionary municipal authority.

Nothing contained in this Article shall be interpreted as regulating matters exclusively reserved to state or federal agencies, including environmental permitting, utility regulation, occupational safety, or other matters preempted by law.

Information concerning such matters may be considered by the City solely for purposes of evaluating municipal impacts and exercising discretionary municipal authority.

10.02(P) Anti-Evasion.

The provisions of this Article shall not be avoided through:

- segmentation of a development into multiple applications;
- successive ownership transfers;
- division of property;
- phased construction intended to remain below applicability thresholds;
- creation of affiliated entities;
- modification of project descriptions;
- changes in business classification;
- changes in zoning designation;
- or any other arrangement having the purpose or practical effect of avoiding application of this Article.

Where the City determines that multiple applications, phases, parcels, or entities constitute a Common Development Plan, such components shall be evaluated collectively.

The Governing Body shall evaluate the actual and reasonably foreseeable characteristics, operational purpose, and impacts of a proposed development rather than relying solely upon descriptions contained in the application or representations concerning the intended use of the project.

10.02(Q) Liberal Construction.

This Article shall be liberally construed to carry out its stated purposes while remaining consistent with the Home Rule authority granted to the City under the Constitution and laws of the State of North Dakota.

In the event of uncertainty concerning applicability, the Governing Body shall interpret this Article in a manner that promotes informed municipal decision-making, transparency, and protection of the public interest, provided such interpretation remains consistent with applicable law.

Section 10.03. Required Review Procedures.

10.03(A) General Requirement.

Before granting discretionary municipal approval for a Qualified Development, the Governing Body shall ensure that the review procedures required by this Article have been completed and that the information required for informed municipal decision-making has been made available for public consideration.

No discretionary approval shall be granted until the Governing Body determines that the procedural requirements of this Article have been substantially satisfied.

10.03(B) Independent Professional Evaluation.

The Governing Body shall base its decision upon the administrative record developed pursuant to this Article, including competent professional evidence, and shall not rely solely upon studies, reports, analyses, projections, or representations prepared by or on behalf of an applicant or by persons having a direct financial interest in the approval of the proposed development.

When technical information is necessary to evaluate reasonably foreseeable impacts of a Qualified Development, the City shall obtain an independent professional review by individuals or firms possessing appropriate education, training, experience, and professional qualifications.

Independent review may include verification, evaluation, peer review, or supplemental analysis of technical information submitted by the applicant.

The purpose of independent review is to provide the Governing Body with objective professional evaluation sufficient to permit informed municipal decision-making.

10.03(C) Selection of Independent Professionals.

Independent professionals shall be selected by the City.

The City may consult with the applicant regarding qualifications or scope of work but shall retain sole authority to select, direct, and supervise independent reviewers.

Nothing contained herein shall prohibit the City from utilizing qualified governmental agencies, regional organizations, educational institutions, or independent consulting firms possessing relevant expertise.

10.03(D) Applicant Responsibility for Review Costs.

The City may require the applicant to reimburse the City for the reasonable and necessary costs of independent professional review performed pursuant to this Article.

Such reimbursement shall be limited to costs reasonably necessary to evaluate the reasonably foreseeable impacts of the proposed development and shall be applied uniformly to all Qualified Developments.

Nothing contained herein authorizes the City to require unnecessary, duplicative, or unreasonable studies or expenses.

10.03(E) Required Technical Information.

The Governing Body shall obtain sufficient information to reasonably evaluate the foreseeable municipal impacts of a Qualified Development.

Depending upon the nature, size, and characteristics of the proposed development, such information may include professional evaluations concerning:

1. municipal infrastructure capacity;
2. transportation and traffic impacts;
3. public safety and emergency response capabilities;
4. water supply and wastewater systems;
5. stormwater management;
6. electrical infrastructure and utility demands;
7. environmental conditions affecting municipal interests;
8. fiscal impacts upon the City;
9. compatibility with surrounding land uses;
10. public service demands;
11. noise, vibration, lighting, or other operational impacts;
12. mitigation measures proposed to address identified impacts; and
13. anticipated facility closure, decommissioning, site stabilization, reclamation, long-term site management, and any reasonably foreseeable municipal responsibilities associated with the cessation of operations, including the removal or disposition of major infrastructure where applicable;
14. such other matters as are reasonably necessary to evaluate foreseeable municipal impacts.

The Governing Body shall require only those studies or evaluations reasonably necessary to assess identified impacts that cannot otherwise be adequately evaluated using existing competent information.

Where the Governing Body determines that reasonably foreseeable closure or decommissioning may result in material municipal obligations or long-term impacts, the Governing Body may require additional information concerning proposed decommissioning, reclamation, financial responsibility, or other lawful measures reasonably related to those impacts.

10.03(F) Public Notice, Public Participation, and Public Access.

The Governing Body shall provide meaningful opportunities for public participation before granting discretionary approval for a Qualified Development.

Public participation shall include, at a minimum:

1. public notice as required by law;
2. availability of non-confidential application materials and supporting documentation for public inspection within a reasonable time before the public hearing or final decision to permit meaningful public review;
3. at least one public hearing conducted before final discretionary approval;
4. reasonable opportunity for members of the public to present oral and written comments;
5. reasonable opportunity for questions directed through the Governing Body regarding technical information relied upon in the decision-making process; and

6. consideration of relevant public comments before final action is taken.

Nothing contained herein shall prohibit additional public meetings, informational workshops, or other opportunities for public engagement whenever the Governing Body determines such participation would assist informed municipal decision-making.

10.03(G) Public Availability of Information.

Except as otherwise protected from disclosure by state or federal law, information relied upon by the Governing Body in making a decision under this Article shall be made available for public inspection before final discretionary action.

If confidential or proprietary information is submitted to the City, the Governing Body shall require, whenever reasonably practicable, that non-confidential summaries, analyses, or substitute information be provided sufficient to permit meaningful public understanding of the proposed development and its anticipated municipal impacts.

The existence of confidential information shall not prevent the Governing Body from obtaining sufficient information to satisfy the requirements of this Article.

10.03(H) Completeness of Information.

If the Governing Body determines that information reasonably necessary to evaluate the foreseeable municipal impacts of a Qualified Development is incomplete, internally inconsistent, unsupported by competent professional evidence, or otherwise insufficient for informed municipal decision-making, the Governing Body shall defer final discretionary action until such deficiencies have been adequately addressed.

Nothing in this subsection shall be construed as requiring certainty regarding future events; rather, decisions shall be based upon the best reasonably available competent professional information.

10.03(I) Administrative Record.

The City shall maintain an administrative record documenting compliance with this Article.

The record shall include:

- the application materials;
- technical studies and professional evaluations;
- independent review reports;
- written public comments received;
- hearing records;
- written findings adopted pursuant to Section 10.04; and
- other materials relied upon by the Governing Body in reaching its decision.

The administrative record shall provide the factual basis supporting the Governing Body's exercise of discretionary municipal authority.

Section 10.04. Required Findings Prior to Municipal Approval.

10.04(A) Written Findings Required.

Before granting any discretionary municipal approval for a Qualified Development, the Governing Body shall adopt written findings of fact demonstrating compliance with this Article.

The written findings shall be based upon the administrative record and supported by substantial evidence.

The Governing Body shall not grant discretionary approval until the findings required by this Section have been adopted.

10.04(B) Required Findings.

The Governing Body shall determine, based upon substantial evidence contained within the administrative record, that:

1. the review procedures required by this Article have been completed;
2. sufficient competent professional information has been obtained to reasonably evaluate the foreseeable municipal impacts of the Qualified Development;
3. independent professional review has been completed where required under this Article;
4. reasonably foreseeable impacts upon municipal infrastructure, public services, transportation systems, emergency response capabilities, public finances, and other municipal interests have been evaluated;
5. the Governing Body has considered relevant public comments received during the review process;
6. the Governing Body has considered reasonably foreseeable cumulative impacts associated with the Qualified Development;
7. the Governing Body has considered competent professional information concerning reasonably foreseeable facility closure, decommissioning, reclamation, long-term site management, and any reasonably foreseeable municipal impacts associated with the cessation of operations;
8. information relied upon in reaching the decision is supported by competent professional evidence; and
9. the Governing Body possesses sufficient information to exercise its discretionary authority in an informed manner.

10.04(C) Consideration of Mitigation Measures.

When reasonably foreseeable municipal impacts have been identified, the Governing Body shall consider mitigation measures proposed by the applicant, governmental agencies, independent professionals, or members of the public.

Nothing contained herein shall require the Governing Body to accept any particular mitigation measure.

Consideration of mitigation measures shall not relieve the Governing Body of its obligation to determine whether sufficient information exists to support informed municipal decision-making.

10.04(D) Insufficient Information.

If the Governing Body determines that the administrative record does not contain sufficient competent professional evidence to support one or more findings required by this Section, the Governing Body shall not grant discretionary municipal approval until such deficiencies have been adequately addressed.

The Governing Body may continue proceedings, request additional information, direct additional independent review, or take such other lawful action as may be reasonably necessary to complete the administrative record.

Nothing contained herein shall require denial of an application solely because additional information is required before an informed decision can be made.

10.04(E) Basis for Decision.

The Governing Body's decision shall be based upon the administrative record developed pursuant to this Article.

The Governing Body may assign such weight to the evidence as it deems appropriate, provided its findings are supported by substantial evidence contained within the administrative record.

Nothing contained herein shall require unanimous professional opinions or eliminate the Governing Body's authority to exercise reasonable legislative judgment based upon conflicting competent evidence.

10.04(F) Written Decision.

The Governing Body's final decision approving, conditionally approving, or denying a Qualified Development shall be accompanied by written findings satisfying the requirements of this Article.

The written findings shall identify the principal facts supporting the Governing Body's decision and shall reference the evidence relied upon in reaching those findings.

10.04(G) Uniform Application.

The procedures and findings required by this Article shall be applied uniformly to all Qualified Developments.

Neither anticipated economic benefits, projected tax revenues, employment projections, private agreements, nor other economic considerations shall excuse compliance with the procedural requirements established by this Article.

10.04(H) Scope of Review.

Nothing contained in this Article shall be construed to require the Governing Body to guarantee future operational performance, predict every possible future event, or regulate matters reserved exclusively to state or federal authority.

The Governing Body's responsibility under this Article is to make informed discretionary municipal decisions based upon competent professional evidence and the reasonably foreseeable impacts presented by the administrative record.

10.04(I) Standard of Compliance.

Substantial compliance with the procedural requirements of this Article shall be demonstrated through the administrative record and written findings adopted by the Governing Body.

Minor procedural irregularities that do not materially affect the fairness or completeness of the review process shall not invalidate an otherwise lawful municipal decision.

Material failure to satisfy the procedural requirements established by this Article shall require correction before discretionary municipal approval may be granted.

Section 10.05. Relationship to Existing Authority.

10.05(A) Exercise of Municipal Authority.

Nothing contained in this Article shall be construed to transfer legislative authority from the Governing Body to the electorate or to any other person.

The Governing Body shall retain all legislative and discretionary authority granted by the Constitution and laws of the State of North Dakota and by this Home Rule Charter.

This Article establishes procedural requirements governing the exercise of that authority with respect to Qualified Developments.

10.05(B) Relationship to Other Laws.

This Article supplements, and shall be construed consistently with, applicable federal law, the Constitution and laws of the State of North Dakota, and this Home Rule Charter.

Nothing contained herein shall be interpreted to regulate matters exclusively preempted by state or federal law.

Whenever reasonably possible, this Article shall be interpreted in a manner that gives effect to all applicable provisions of law.

10.05(C) Relationship to Municipal Ordinances.

The City may adopt ordinances, resolutions, policies, administrative procedures, and application requirements necessary to implement this Article.

No ordinance, resolution, policy, administrative procedure, development agreement, incentive agreement, or other municipal action shall waive, diminish, or conflict with the minimum procedural protections established by this Article.

Implementation measures adopted by the City shall be consistent with both the purpose and intent of this Article and the authority granted by this Home Rule Charter.

10.05(D) Uniform Administration.

The City shall administer this Article in a fair, impartial, and uniform manner.

Nothing contained herein shall be interpreted to authorize arbitrary, discriminatory, or inconsistent application of the requirements established by this Article.

10.05(E) No Limitation on Existing Authority.

Except as expressly provided herein, nothing contained in this Article shall be construed to enlarge or diminish any lawful authority otherwise possessed by the City.

The procedural requirements established by this Article are minimum requirements applicable to Qualified Developments and shall not preclude the Governing Body from exercising any additional authority otherwise authorized by law.

10.05(F) Construction.

If any provision of this Article is susceptible to more than one reasonable interpretation, the interpretation that best promotes informed municipal decision-making, transparency, procedural fairness, and protection of the public interest, while remaining consistent with applicable law, shall be preferred.

Section 10.06. Implementation and Enforcement.

10.06(A) Implementation.

The Governing Body shall adopt such ordinances, administrative procedures, application requirements, and other implementing measures as are reasonably necessary to administer this Article.

Such implementing measures shall remain consistent with the requirements, purposes, and intent of this Article and shall not diminish the procedural protections established herein.

10.06(B) Severability.

If any section, subsection, sentence, clause, phrase, or application of this Article is determined by a court of competent jurisdiction to be invalid or unenforceable, such determination shall not affect the validity or enforceability of the remaining provisions or applications of this Article, which shall remain in full force and effect to the greatest extent permitted by law.

To this end, the provisions of this Article are declared to be severable.

10.06(C) Effective Date.

This Article shall become effective in accordance with the provisions governing amendments to the Home Rule Charter and shall apply to Qualified Developments for which discretionary municipal approval has not become final prior to its effective date.

Nothing contained herein shall impair vested rights existing under applicable law.

10.06(D) Administrative Record.

Compliance with the procedural requirements established by this Article shall be demonstrated through the administrative record maintained by the City.

The Governing Body's written findings adopted pursuant to Section 10.04 shall constitute the official record demonstrating compliance with this Article.

10.06(E) Judicial Review.

Nothing contained in this Article shall be construed to create a cause of action or remedy not otherwise authorized by law.

Any judicial review of actions taken pursuant to this Article shall proceed in accordance with applicable law governing review of municipal decisions.

10.06(F) Liberal Construction.

This Article shall be liberally construed to accomplish its stated purposes while remaining consistent with the Constitution and laws of the State of North Dakota and the Home Rule authority of the City of Harwood.

END OF ARTICLE X
